

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 32-005
Amendments to Title 8 of the Chickasaw Nation Code
(Elections and Campaigns)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures for tribal elections and campaigns, and

WHEREAS, the Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 8-200.8 **ELECTIVE OFFICE VACANCIES.**

When an elective office shall become vacant, the Legislature shall, by resolution, declare the vacancy to exist, set the dates for a special election in accordance with Section 8-500.2 and request the Governor to call for such special election if the elective office being vacated would not, ordinarily, be open for the regularly scheduled election. Upon receipt of the resolution, the Governor shall call for the election by the most expedient method to fill the vacated elective office.

SECTION 8-200.9 **CHALLENGE TO CANDIDACY.**

A. A Candidate may challenge the eligibility of another Candidate in writing, specifically naming the Candidate and the district and stating the cause of the challenge. Such challenges must be filed in the office of the Election Secretary/Tribal Registrar no later than two (2) working days after the closing of the filing period for the Candidates. A Candidate being challenged shall have three (3) working days from the day of receipt of notice of the challenge to file an **answer** ~~appeal~~ to the challenge; provided, however, that other time frames for filing of challenges and **answers or responses** ~~counter-appeals~~ may be stipulated by the Legislature for special elections. Notice of a challenge shall be sent by the Election Secretary/Tribal Registrar to the challenged Candidate by certified mail, return receipt requested.

SECTION 8-300.3**VOTER REGISTRATION CLOSING DATE.**

C. During the open registration period and at such other times as may be deemed necessary by the Election Secretary/Tribal Registrar, the Election Secretary/Tribal Registrar shall cause to be published in the Chickasaw Times newspaper, a list of Voters whose ballots have been returned as undeliverable by the United States Postal Service, which shall serve to notify such Voters that their Voter registration shall be placed in an inactive status. The Election Secretary/Tribal Registrar may include a Voter registration form as part of such publication, as an aid to Voters who need to correct their Residency and mailing address information. Such Voters shall not receive any ballots for tribal elections nor shall they be eligible to vote in any tribal elections until such time as the Voters inform the Tribal Registration Office of a correct Residency and mailing address; provided, however, that should the Tribal Registration Office be notified by the United States Postal Service of a forwarding order for an address of a Voter for whom mail has been returned marked undeliverable by the United States Postal Service, the change reflected in that forwarding order shall be made on the Voter's records by the Election Secretary/Tribal Registrar. Any changes for corrections that are submitted by a Voter or by the United States Postal Service after the registration period closes shall be held by the Election Secretary/Tribal Registrar until registration re-opens and no ballots shall be mailed to them when they fail to submit their corrected Voter information prior to the closing date for Voter registration.

SECTION 8-300.4**RESIDENT AND NON-RESIDENT REGISTRATION.**

B. In accordance with Article VI, Section 4, of the Constitution, each Non-resident Voter shall choose one (1) district for the purpose of voting. The Non-resident Voter may affiliate with the district of his choice, in accordance with the provisions of Subsection A above, and Section 8-300.1 through and Section 8-300.3.

SECTION 8-400.2**BALLOT MAILING TO VOTERS.**

A. All official ballots shall be mailed to each qualified voter ~~nineteen (19)~~ fifteen (15) days prior to ballot counting day; provided, however, that all ballots for qualified Voters who reside outside of the contiguous 48 states shall be mailed two (2) weeks prior to such mailing date using an expedited mail delivery service. The names on the outgoing envelopes shall be the same as appears on the Voter registration application.

E. Official ballots shall conform to the specifications of Section 8-400.6 through Section 8-400.8, except when specifications of the automated election service firm provides for more efficient methods without compromising the secrecy of the votes cast.

SECTION 8-400.9**MARKING BALLOTS.**

A. Mailed ballots shall include proper instructions to the Voter regarding the marking and sealing of the ballot. The Voter shall mark and seal the ballot in accordance with the instructions provided with the mail ballot. If the ballot envelope requires a signature, such signature, at the discretion of the Voter, may be notarized in accordance with the provisions of Section 8-400.8 of Title 8 of the Code of the Chickasaw Nation. Such notarization, although not required, is recommended, and information to this effect shall be provided in the instructions sent to the Voter.

SECTION 8-400.10**INVALID BALLOTS.**

Ballots shall be counted invalid for any of the following reasons:

2. the signature is not readily identifiable as that of the registered Voter's signature which appears on the Voter's registration form. The Election Secretary/Tribal Registrar and one Commissioner or (2) Commissioners shall have the authority to determine the validity of the Voter signatures in accordance with Title 2, Chapter 10, Section 2-100431.6 of the Chickasaw Nation Code;

SECTION 8-400.12**BALLOT COUNTING.**

The Election Commission and the Election Secretary/Tribal Registrar shall conduct and supervise the ballot counting in the Nation's headquarters on the last Tuesday of July of the election year, starting at or about 11:00 a.m. Results of the counting shall be declared and announced in accordance with Sections 8-400.15 and 8-400.18.

SECTION 8-400.15**TALLY RESULTS.**

The Election Secretary/Tribal Registrar shall make a final tally of the results of the election based on the tallies received from all counters. Results shall be declared in accordance with Section 8-400.18 and posted in several public areas in the Nation.

SECTION 8-400.27**RUNOFF ELECTION PROCEDURES.**

The runoff election ballots shall be of the same format as the General or Special Election ballots and shall be mailed to all Voters ~~nineteen (19)~~ fifteen days prior to ballot counting day. The ballots must be returned by the last Tuesday of August, no later than 10:30 a.m., and shall be counted on the same day (Tuesday) at the same location and under the same procedures and regulations as those used in the regular election. Results shall be announced on Tuesday after the ballots are counted and shall be certified under regular election rules. The successful runoff Candidate must receive more than fifty percent (50%) of the total votes in order to be duly elected. If the canvas of the tally of results of a runoff election reveal that the two (2)

runoff Candidates have received the same number of votes, the Election Commission shall conduct a recount of all the ballots. No fee for such recount shall be charged to the runoff Candidates. Should a tie exist at the completion of the recount, the Election Commission shall decide the winner by the toss of a coin. **The Candidate whose name appears first on the ballot shall make the call for the coin toss.** ~~The winner being the Candidate who successfully chooses the side landing facing up.~~"

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 20, 2015, by a vote of 13 ayes, 0 nays, 0 abstentions.

Connie Barker

Chairperson
Chickasaw Tribal Legislature

Nancy Elliott

Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 24 2015

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Explanation: This resolution corrects spelling and references to other sections in the Chickasaw Nation Code and amends the mailing date for ballots.

Presented By: Election Rules and Regulations *Ad Hoc* Committee